

Amar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 October 2019 · Writ-C No. 32425 of 2019 · **Writ disposed; petitioners relegated to Clause 6.5 with time-bound consideration.**

HEADNOTE

A writ merely disputing an electricity bill is not entertained on merits. The Division Bench accepted the Department's objection of alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a further remedy under the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007, and disposed of the petition with liberty to apply under Clause 6.5 within ten days (later extended by two weeks). The authority was directed to consider and dispose of that application in accordance with law within six weeks.

FACTUAL SUMMARY

Amar Singh and sixteen others filed a writ petition in the Allahabad High Court disputing an electricity bill. Counsel for the Electricity Department objected that the petitioners had an alternative remedy of representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and a further remedy under the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007. After the writ was disposed of on that footing, the petitioners sought extra time because High Court vacations had delayed the certified copy of the 1 October 2019 order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternative-remedy

HOLDING

Where the consumer's grievance is a disputed electricity bill, the writ court will not examine the bill on merits and will relegate the consumer to a representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a further remedy under the UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007. An application so made is to be considered in accordance with law and disposed of within the time directed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Writ disposed of on the alternative-remedy objection without examining the bill. ¶ 1